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File No.: EXP202406043

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On September 26, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against ***COMMUNITY.1 (hereinafter, the respondent), through the Agreement that is transcribed below:

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File No.: EXP202406043

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: MR. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on March 25, 2024. The complaint is directed against ***COMMUNITY.1 with NIF ***NIF.1 (hereinafter, the respondent). The reasons on which the complaint is based are as follows:

The complainant states that on January 16, 2024, he sent an email exclusively addressed to the president of his homeowners' association ***COMMUNITY.1, which contained his name, surname, and ID number. This email included two documents, the first referring to the fourth item on the agenda of the extraordinary homeowners' meeting convened for January 18, 2024, and the second related to activities for the conditioning of the storage premises of his property.

The complainant asserts that the content of this email was fully transcribed in items one and four of the minutes of the extraordinary homeowners' meeting held on January 18, 2024. This meant that the other homeowners had access to his personal data.

He believes that the principle of confidentiality may have been violated.

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Along with the complaint, he provides:

- A copy of the email sent by the complainant to the president of the homeowners' association on January 16, 2024.
- A copy of the minutes book of the homeowners' association ***COMMUNITY.1, referring to the extraordinary homeowners' meeting held on January 18, 2024.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was done through electronic notification sent by this Agency on April 16, 2024, and was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on May 7, 2024, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, with the procedure being considered completed in accordance with the provisions of Article 41.5 of the LPACAP, an informational copy was sent by postal mail, which was duly notified on May 28, 2024. In this notification, he was reminded of his obligation to communicate electronically with the Administration, and he was informed of the means of access to such notifications, reiterating that, henceforth, he

would be notified exclusively by electronic means.

THIRD: On June 25, 2024, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On June 26, 2024, a response letter from the respondent was received by this Agency, indicating that according to Law 49/1960, of July 21, on Horizontal Property, any owner can request the Board of Owners to address a matter of interest to the community, for which purpose, he will direct a letter so that the presidency includes it in the agenda of the corresponding meeting. In this regard, the respondent states that the content of the email was included in the agenda, as it was necessary to present it to the other owners so that they could make the best decision in the voting.

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I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Unfulfilled Obligation. Duty of Confidentiality.

Article 5.1.f) of the GDPR in relation to the principle of integrity and confidentiality in the processing of data establishes that:

"1. Personal data shall be:

f) processed in such a manner as to ensure appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, by means of the application of appropriate technical or organizational measures (integrity and confidentiality)."

The aforementioned principle of confidentiality thus requires the protection of personal data against unauthorized access, use, and disclosure, as Recital 39 of the GDPR states:

"[...] Personal data must be processed in a manner that ensures appropriate security and confidentiality of personal data, including to prevent unauthorized access or use of such data and of the equipment used in the processing."

The second paragraph of Article 16.2 of Law 49/1960, of July 21, on Horizontal Property establishes that: "Any owner may request that the Board of Owners study and pronounce on any matter of interest to the community; for this purpose, they shall send a written request, clearly specifying the matters they wish to be addressed, to the president, who shall include them in the agenda of the next meeting to be held."

As established by the article, what must be clearly specified are the matters requested to be addressed by any owner, which does not support the dissemination of the personal data of the owners. In this case, it is noted that the party being complained about included in the minutes of the extraordinary meeting of owners held on 01/18/2024, the content of the email sent to them by the complainant, which included, in addition to their name and surname, the ID number, thereby publicly disclosing this data to the other owners of the property.

In accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the disclosure of the complainant's ID number to the other owners constitutes a presumed infringement of the confidentiality principle established in Article 5.1.f) of the GDPR.

III

Classification of the infringement of Article 5.1.f) of the GDPR

If the aforementioned infringement of Article 5.1.f) of the GDPR is confirmed, it could constitute the commission of the infringement classified in Article 83.5.a) of the GDPR, which states:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) "The basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9."

In this regard, the LOPDGDD, in its Article 71 establishes:

"Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the limitation period, Article 72 LOPDGDD "Infringements considered very serious" provides:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a limitation period of three years:

a) "The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

IV

Proposal for Sanction.

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 is, in each individual case, effective, proportionate, and dissuasive."

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2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) The nature, seriousness, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damage and harm they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the data controller or processor to mitigate the damage and harm suffered by the affected parties;
- d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have applied under Articles 25 and 32;
- e) any previous infringement committed by the data controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor reported the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor in relation to the same matter, the compliance with such measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42;

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement." In the present case, taking into consideration the number of owners attending the extraordinary meeting, the category of the disclosed data, and in accordance with the transcribed provisions, and without prejudice to what results from the instruction of the procedure, the initial assessment of the amount of the fine is €300 euros, for infringement of Article 5.1 f) of the GDPR.

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V

Adoption of measures

If the infringement is confirmed, it may be agreed to impose on the data controller the adoption of appropriate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the data controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

In the present case, it is deemed necessary that within two months the necessary measures be adopted so that in future meetings and minutes of the owners' association, the ID card data of the owners is not disclosed.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against ***COMMUNITY.1, with NIF ***NIF.1, for the alleged infringement of Article 5.1.f) of the GDPR classified in Article 83.5.a) of the GDPR.

SECOND: TO APPOINT B.B.B. as the instructor and C.C.C. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirectorate for Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be for the alleged infringement of Article 5.1.f) of the GDPR, classified in Article 83.5 of said regulation, an administrative fine of €300 without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to ***COMMUNITY.1, with NIF ***NIF.1, granting a hearing period of ten working days for them to make allegations and present any evidence they deem appropriate. In their writing of

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Claims must provide their NIF and the file number that appears in the heading of this document. If no claims are made within the stipulated period regarding this initiation agreement, it may be

considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, you may acknowledge your responsibility within the period granted for the formulation of claims regarding this initiation agreement, which will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at €240.00, resolving the procedure with the imposition of this sanction.

Similarly, you may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at €240, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one that corresponds to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate claims regarding the initiation of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at €180.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the express withdrawal or renunciation of any action or administrative appeal against the sanction.

For these purposes, in case of opting for any of them, you must send to the General Sub-Directorate of Data Inspection an express communication of the withdrawal or renunciation of any action or administrative appeal against the sanction indicating which of the two reductions you are opting for or if it is for both.

In the event that you choose to proceed with the voluntary payment of any of the amounts indicated above (€240 or €180), you must make it effective by depositing it into account no. IBAN:

ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: XXXXXXXXXXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are opting.

You must also send the proof of deposit to the General Sub-Directorate of Inspection along with the express communication of the withdrawal or renunciation of any action or administrative appeal against the sanction to continue with the procedure in accordance with the amount deposited.

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The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. If this period elapses without a resolution being issued and notified, it shall expire, and consequently, the proceedings shall be archived; in accordance with the provisions of Article 64 of the LOPDGGD.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be made exclusively electronically, through the Single Authorized Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the process. You are informed that you may identify an email address before this Agency to receive notice of the availability of notifications and that the lack of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, no administrative appeal is available against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On October 17, 2024, the respondent has proceeded to pay the fine in the amount of 180 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the waiver of any action or administrative appeal against the fine and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement and its legal qualification.

FOURTH: In the previously transcribed Initiation Agreement, it was indicated that, if the infringement were confirmed, measures could be imposed on the responsible party to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period..."

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Initiation Agreement is warranted.

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Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely pecuniary or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the latter has been justified as inappropriate, voluntary payment by the alleged responsible party at any time prior to the resolution will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely pecuniary, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202406043, in accordance with the provisions of Article 85 of the LPACAP.

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SECOND: ORDER the COMMUNITY OF PROPERTY OWNERS ***COMMUNITY.1 to notify the Agency within 2 months from the date this resolution becomes final and enforceable, of the adoption of the measures described in the legal grounds of the Initiating Agreement transcribed in this resolution.

THIRD: NOTIFY this resolution to the COMMUNITY OF PROPERTY OWNERS ***COMMUNITY.1.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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